THE BOUNDARIES OF DISCRETION

The governor has two kinds of discretion—constitutional (mentioned in the Constitution) and situational (derived from the exigencies of a prevailing political situation). The Constitution says the exercise of the discretionary powers is beyond the purview of judicial review, but the Supreme Court has asserted that "the area for the exercise of the governor's discretion is very limited"

CONSTITUTIONAL DISCRETION

- Reservation of a bill for the President's consideration
- Recommendation for implementing President's rule in the state—this is subject to judicial review, according to the Supreme Court
- While performing duties as the administrator of a neighbouring Union territory (in case of additional charge)
- Determining the amount payable to an autonomous Tribal District Council as royalty from mineral exploration licences by the governments of Assam, Meghalaya, Tripura, and Mizoram
- Seeking information from the CM about state administrative and legislative matters

SITUATIONAL DISCRETION

- Appointment of a chief minister when no party has a clear majority in the legislative assembly or when the incumbent chief minister dies and there is no obvious successor
- Dismissal of the council of ministers when it is unable to demonstrate the confidence of the legislative assembly
- Dismissal of the legislative assembly when the council of ministers lose their majority
- The governor is also charged with specific duties that must be carried out in accordance with the President's directives. In this regard, while the governor is required to consult the council of ministers led by the chief minister, he/ she acts at his/ her discretion

over the appointment of V-Cs on the ground of flouting UGC norms.

State governments have tried to strike back by taking away the chancellor's role from the governor. In June, the West Bengal state assembly passed a bill to remove the governor from the post of chancellor of state-run universities and give the role to the chief minister instead. The bill is awaiting the governor's assent as is a similar bill passed by the Tamil Nadu assembly. The Punjab government, too, is considering whether it should follow the same path and replace the governor with the chief minister as the chancellor of state universities.

According to Article 200 of the Constitution, every bill passed in an assembly has to be sent to the governor, who has four options—give his assent, withhold assent, reserve the bill for the consideration of the President, or return it to the legislature, asking it to reconsider the bill or an aspect of it. The governor can also suggest an amendment to the bill. The legislature considers these recommendations, but if it chooses to pass the bill in the same form again, then the governor cannot reject it.

The Constitution empowers the governor to reserve a bill for the President's consideration in order to ensure that the state's laws are within the constitutional framework. Such gubernatorial interference is expected to be practised rarely, but matters related to education have often faced such scrutiny. Though education comes under the concurrent list, which contains subjects on which both the Centre and the states can legislate, entry 66 of the Union list—coordination and determination of standards in institutions for higher education or research and scientific and technical institutions—gives the Centre substantial authority over higher education.

There is no time-frame within which the President has to respond to such reference by the governor. Several state governments claim that this procedure is being increasingly used to put in cold storage such bills that go against the governor's political ideology. As the governors are appointed by the Union government, they are mostly people affiliated to the party in power at the Centre, though the Constitution did not envisage it to be so in principle. Another way to scuttle such bills is to not take any decision—not to assent and not to return to the assembly—forcing the bill to lapse after the end of the assembly session. "This non-action is illegal," says P.D.T. Achary, a constitutional expert and former secretary-general of the Lok Sabha. "The Constitution gives the governor four options. He can't sit over a decision as it is not one of the options."

HOW FAR CAN A GOVERNOR REALLY GO?

Khan's recent threat to sack ministers has brought back the focus on the role, powers and discretion of the governor's office. Article 154 of the Constitution says that the executive power of the state shall be vested with the governor and shall be exercised by him either directly or through officers subordinate to him in accordance with the Constitution. Experts say several governors are interpreting this text literally in recent times and ignoring the essence of the Constitution. Khan's threat to sack the ministers is also based on such an interpretation. "Article 164 says that the CM is appointed by the governor and other ministers are appointed on the advice of the CM. So, the governor cannot remove a minister without the chief minister's advice," says Achary.

The Supreme Court has time and again reminded governors about the limits of their discretionary power. For instance, the Constitution says that the governor shall summon the assembly session at such time and place as he or she thinks fit. Going by this, in 2016, when Arunachal Pradesh Governor Jyoti Prasad Rajkhowa summoned